

is called *Ingratitude*; and hath the same relation to Grace, that Injustice hath to Obligation by Covenant,

*The fifth,
Mutuall ac-
commodati-
on, or Com-
pleasance.*

A fifth Law of Nature, is COMPLEASANCE; that is to say, *That every man strive to accommodate himselfe to the rest.* For the understanding whereof, we may consider, that there is in mens aptnesse to Society, a diversity of Nature, rising from their diversity of Affections; not unlike to that we see in stones brought together for building of an *Ædifice*. For as that stone which by the asperity, and irregularity of Figure, takes more room from others, than it selfe fills; and for the hardnesse, cannot be easily made plain, and thereby hindereth the building, is by the builders cast away as unprofitable, and troublesome: so also, a man that by asperity of Nature, will strive to retain those things which to himselfe are superfluous, and to others necessary; and for the stubbornness of his Passions, cannot be corrected, is to be left, or cast out of Society, as combersome thereunto. For seeing every man, not onely by Right, but also by necessity of Nature, is supposed to endeavour all he can, to obtain that which is necessary for his conservation; He that shall oppose himselfe against it, for things superfluous, is guilty of the warre that thereupon is to follow; and therefore doth that, which is contrary to the fundamentall Law of Nature, which commandeth *to seek Peace*. The observers of this Law, may be called SOCIABLE (the Latines call them *Commodi*;) The contrary, *Stubborn, Insociable, Froward, Intractable.*

*The sixth,
Facility to
Pardon.*

A sixth Law of Nature, is this, *That upon caution of the Future time, a man ought to pardon the offences past of them that repenting, desire it.* For PARDON, is nothing but granting of Peace; which though granted to them that persevere in their hostility, be not Peace, but Feare; yet not granted to them that give caution of the Future time, is signe of an aversion to Peace; and therefore contrary to the Law of Nature.

*The seventh,
that in Re-
venges, men
respect onely
the future
good.*

A seventh is, *That in Revenges, (that is, retribution of Evil for Evil,) Men look not at the greatnesse of the evill past, but the greatnesse of the good to follow.* Whereby we are forbidden to inflict punishment with any other designe, than for correction of the offender, or direction of others. For this Law is consequent to the next before it, that commandeth Pardon, upon security of the Future time. Besides, Revenge without respect to the Example, and profit to come, is a triumph, or glorying in the hurt of another, tending to no end; (for the End is alwayes somewhat to Come;) and glorying to no end, is vain-glory, and contrary to reason; and to hurt without reason, tendeth to the introduction of Warre; which is against the Law of Nature; and is commonly stiled by the name of *Cruelty.*

*The eighth,
against Con-
tumely.*

And because all signes of hatred, or contempt, provoke to fight; insonmuch as most men choose rather to hazard their life, than not to be revenged; we may in the eighth place, for a Law of Nature, set down this Precept, *That no man by deed, word, countenance, or gesture, declare Hatred, or Contempt of another.* The breach of which Law, is commonly called *Contumely.*

*The ninth, a-
gainst Pride.*

The question who is the better man, has no place in the condition of meer Nature; where, (as has been shewn before,) all men are equall.

The

The inequallity that now is, has bin introduced by the Lawes civill. I know that *Aristotle* in the first booke of his *Politiques*, for a foundation of his doctrine, maketh men by Nature, some more worthy to Command, meaning the wiser sort (such as he thought himselfe to be for his Philosophy;) others to Serve, (meaning those that had strong bodies, but were not Philosophers as he;) as if Master and Servant were not introduced by consent of men, but by difference of Wit: which is not only against reason; but also against experience. For there are very few so foolish, that had not rather governe themselves, than be governed by others: Nor when the wise in their own conceit, contend by force, with them who distrust their owne wisdom, do they alwaies, or often, or almost at any time, get the Victory. If Nature therefore have made men equall, that equalitie is to be acknowledged: or if Nature have made men unequall; yet because men that think themselves equall, will not enter into conditions of Peace, but upon Equall termes, such equalitie must be admitted. And therefore for the ninth law of Nature, I put this, *That every man acknowledge other for his Equall by Nature.* The breach of this Precept is *Pride*.

On this law, dependeth another, *That at the entrance into conditions of Peace, no man require to reserve to himselfe any Right, which he is not content should be reserved to every one of the rest.* As it is necessary for all men that seek peace, to lay down certaine Rights of Nature; that is to say, not to have libertie to do all they list: so is it necessarie for mans life, to retaine some; as right to governe their owne bodies; enjoy aire, water, motion, waies to go from place to place; and all things else, without which a man cannot live, or not live well. If in this case, at the making of Peace, men require for themselves, that which they would not have to be granted to others, they do contrary to the precedent law, that commandeth the acknowledgment of naturall equalitie, and therefore also against the law of Nature. The observers of this law, are those we call *Modest*, and the breakers *Arrogant* men. The Greeks call the violation of this law *μεγαλεια*; that is, a desire of more than their share.

The tenth,
against Ar-
rogance.

Also if a man be trusted to judge between man and man, it is a precept of the Law of Nature, *that he deale Equally between them.* For without that, the Controversies of men cannot be determined but by Warre. He therefore that is partiall in judgment, doth what in him lies, to deterre men from the use of Judges, and Arbitrators; and consequently, (against the fundamentall Lawe of Nature) is the cause of Warre.

The eleventh
Equity.

The observance of this law, from the equall distribution to each man, of that which in reason belongeth to him, is called *EQUITY*, and (as I have sayd before) distributive Justice: the violation, *Acceptation of persons*, *προσωποληψια*.

And from this followeth another law, *That such things as cannot be divided, be enjoyed in Common, if it can be; and if the quantity of the thing permit, without Stint; otherwise Proportionably to the number of them that have Right.* For otherwise the distribution is Unequall, and contrary to Equitie.

The twelfth,
Equall use of
things Com-
mon.

The thirteenth, of Lot.

The fourteenth, of Primogeniture, and First Seising.

The fifteenth, of Mediators.

The sixteenth, of Submission to Arbitrement.

The seventeenth, No man is his own Judge.

The eighteenth, no man to be Judge, that has in him a natural cause of Partiality.

The nineteenth, of Witnesses.

But some things there be, that can neither be divided, nor enjoyed in common. Then, The Law of Nature, which prescribeth Equity, requireth, *That the Entire Right; or else, (making the use alternate,) the First Possession, be determined by Lot.* For equall distribution, is of the Law of Nature; and other means of equall distribution cannot be imagined.

Of Lots there be two sorts, *Arbitrary*, and *Naturall*. *Arbitrary*, is that which is agreed on by the Competitors: *Naturall*, is either *Primogeniture*, (which the Greek calls *κληρονομία*, which signifies, *Given by Lot;*) or *First Seisure*.

And therefore those things which cannot be enjoyed in common, nor divided, ought to be adjudged to the First Possessor; and in some cases to the First-Borne, as acquired by Lot.

It is also a Law of Nature, *That all men that mediate Peace, be allowed safe Conduct.* For the Law that commandeth Peace, as the *End*, commandeth Intercession, as the *Means*; and to Intercession the Means is safe Conduct.

And because, though men be never so willing to observe these Lawes, there may neverthelesse arise questions concerning a mans action; First, whether it were done, or not done; Secondly (if done) whether against the Law, or not against the Law; the former whereof, is called a question *Of Fact*; the later a question *Of Right*; therefore unlesse the parties to the question, Covenant mutually to stand to the sentence of another, they are as farre from Peace as ever. This other, to whose Sentence they submit, is called an *ARBITRATOR*. And therefore it is of the Law of Nature, *That they that are at controversie, submit their Right to the judgement of an Arbitrator.*

And seeing every man is presumed to do all things in order to his own benefit, no man is a fit Arbitrator in his own cause: and if he were never so fit; yet Equity allowing to each party equall benefit, if one be admitted to be Judge, the other is to be admitted also; & so the controversie, that is, the cause of War, remains, against the Law of Nature.

For the same reason no man in any Cause ought to be received for Arbitrator, to whom greater profit, or honour, or pleasure apparently ariseth out of the victory of one party, than of the other: for hee hath taken (though an unavoydable bribe, yet) a bribe; and no man can be obliged to trust him. And thus also the controversie, and the condition of War remaineth, contrary to the Law of Nature.

And in a controversie of *Fact*, the Judge being to give no more credit to one, than to the other, (if there be no other Arguments) must give credit to a third; or to a third and fourth; or more: For else the question is undecided, and left to force, contrary to the Law of Nature.

These are the Lawes of Nature, dictating Peace, for a means of the conservation of men in multitudes; and which onely concern the doctrine of Civill Society. There be other things tending to the destruction of particular men; as Drunkenness, and all other parts of Intemperance; which may therefore also be reckoned amongst those things which the Law of Nature hath forbidden; but are not necessary